



2021:KER:3990

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE THE CHIEF JUSTICE MR.S.MANIKUMAR

&

THE HONOURABLE MR. JUSTICE SHAJI P.CHALY

THURSDAY, THE 21ST DAY OF JANUARY 2021 / 1ST MAGHA, 1942

WP(C).No.24840 OF 2017(S)

WRIT PETITIONER:

SHRI. GEORGE JOHN
S/O. SHRI.JOHN, AGED 57 YEARS, 230, MATHER NAGAR, SOUTH
KALAMASSERY, KOCHI - 682 033.

BY ADVS.
SRI.A.G.ADITYA SHENOY
SRI.JEFF JOSEPH

RESPONDENTS:

- 1 STATE OF KERALA
REPRESENTED BY ITS CHIEF SECRETARY, GOVERNMENT OF
KERALA, SECRETARIAT, THIRUVANANTHAPURAM - 695 001.
- 2 KERALA STATE ELECTRICITY BOARD
VYDYUTHI BHAVANAM, PATTOM,
THIRUVANANTHAPURAM - 695 004, REPRESENTED BY ITS
CHAIRMAN & MANAGING DIRECTOR.
- 3 THE DIRECTOR GENERAL OF POLICE
POLICE HEAD QUARTERS, VELLAYAMBALAM,
THIRUVANANTHAPURAM - 695 001.
- 4 THE SECRETARY
TRANSPORT DEPARTMENT, GOVERNMENT OF KERALA,
GOVERNMENT SECRETARIAT, THIRUVANANTHAPURAM - 695 001.

R1, R3 & R4 BY SRI. SURIN GEORGE IPE, SR. GOVERNMENT
PLEADER
R2 BY SRI. SUDHEESH GANESH KUMAR, SC

THIS WRIT PETITION (CIVIL) HAVING BEEN FINALLY HEARD ON 21-01-2021,
THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:



Dated this the 21ST day of January, 2021.

JUDGMENT

S. MANIKUMAR,CJ

Petitioner has filed this writ petition as a Public Interest Litigation seeking for a direction to respondents 2 to 4 for removal of illegal hoardings, billboards, posters being put on the road, dividers, electric posts, transformers, traffic signals and pillars along the road side throughout the State of Kerala. The reliefs sought for in the writ petition are as follows:

1. To issue a writ of mandamus or other appropriate writ, direction or order directing respondent No. 1 to take effective measures to ensure the formulation, implementation and enforcement of Exts. P1 and P2 at the earliest and at any rate within a time period as deemed reasonable by this Hon'ble Court.
2. To issue a writ of mandamus or other appropriate writ, direction or order directing respondents 2 to 4 to forthwith take steps for removal of the illegal hoardings, billboards and posters being put up on the roads, pillars and dividers, electric posts, transformers and traffic signals alongside the public roads as well as State and National Highways and as well as those pasted and put up on Government Buildings and offices through the State of Kerala at the earliest and at any rate within a time period as deemed reasonable by this Hon'ble Court.
3. To issue a writ of mandamus or other appropriate writ, direction or order directing respondent Nos. 3 and 4 to consider and to take



appropriate steps to spread awareness amongst the personnel in charge of road traffic and safety and the public at large pertaining to Ext.P1 policy/guidelines.

2. The issue involved in this writ petition is more or less similar to one disposed of by us on 14.01.2021 in W.P.(C) No. 5218 of 2012 and connected cases. The operative portion of the said judgment reads thus:

“56. In addition to the directions issued in *Shani Johnson's* case (cited supra), in the light of the statutory provisions, we dispose of the writ petitions with the following directions:

A) All the unauthorised arches, display boards, hoardings, placards, and banners with poles or frames, etc., fixed to and/or dug into the ground, which abuts the highways, public streets, and pedestrian pavements, shall forthwith be removed. No poles or frames or structures for arches, boards, placards, hoardings, display boards or banners shall be erected on any highway, public road, public passage or pedestrian pathway or pavement. Holes caused on pavements and roads, by reason of erection of frames, poles, structures, placards, hoardings, displaying boards, banners, etc., shall forthwith be repaired.

B) The Secretaries to the Government, LSGD, PWD, State Highways and Heads of Departments, under the respective Acts, extracted above, shall issue appropriate instructions for effective implementation of the above said directions.

C) The District Collectors and the Secretaries of the aforementioned departments shall oversee the implementation of the directions issued by this Court, issue suitable orders, and take appropriate action against the erring officers.

D) The Principal Secretaries to the Government, Public Works Department, Local Self Government Institutions, Government of



Kerala, are directed to issue appropriate instructions to the field officers, to remove the nailing, in other words, de-nailing, make trees nail free and thereby, remove all the unauthorised signboards, advertisements, pamphlets etc. The District Collectors shall act in accordance with the orders issued in that regard.

- E) The Executive Engineer (Roads) or Executive Engineer (National Highways) of the Public Works Department, who are designated as Highway Authorities as per the provisions of the Kerala Highway Protection Act, 1999, are directed to identify those structures, hoardings, advertisement boards and displays etc., endangering road safety, and take immediate steps for removal thereof, under Section 22 of the said Act.
- F) The Project Directors / National Highways Authority of India are directed to take appropriate action, to effectively implement the directions.
- G) The Secretaries of Municipal Corporations and Municipalities in the State, under Section 275 of the Kerala Municipalities Act, 1994, are directed to take steps, to identify and remove unauthorised hoardings, banners, flex boards, temporary arches, posters etc.
- H) Likewise, the Secretaries of the Panchayats are directed to take steps to identify and remove unauthorised hoardings, banners, flex boards, temporary arches, posters, and other similar structures.
- I) The concerned Secretaries are directed to supervise dismantling of outdoor billboards, unauthorised hoardings etc., which causes inconvenience to the commuters.
- J) The Secretaries of the concerned Panchayat under Section 209C of the Kerala Panchayat Raj Act, 1994, shall provide necessary assistance to the NHAI for removal of illegal hoardings, banners, flexes, temporary arches, posters etc.
- K) In the event, the Municipal Authorities/officials, who come across the cases of breaches, not attracting any of the Municipal Laws, shall forthwith report the same to the District Collectors. On such information, being received by the District Collectors, necessary action for removal of such nuisance shall be taken in a time bound manner.
- L) Since, in the State of Kerala, certain notified portions of the National Highways are maintained by the National Highways Authority of India



the outdoor advertising boards which cause distraction to traffic on such stretches of the Highways shall be identified by the concerned Project Director of NHAI and appropriate remedial action be taken, in accordance with law.

- M) The Kerala State Road Safety Authority, constituted under the provisions of Kerala Road Safety Authority Act, 2007, to coordinate action on areas related to road safety among various departments, advice the Government on road safety policy, prescribe and enforce road safety standards and procedures, formulate and implement schemes / projects and programmes relating to road safety and is directed to conduct a detailed study, with the help of various District Road Safety Councils in the State, as regards the harmful effects caused on account of the outdoor hoardings / billboards, installed at various National/ State Highways and elsewhere, and submit a report to the Chief Secretary, to facilitate the State Government to regulate the hazardous outdoor hoardings / billboards.
- N) The Road Safety Commissioner/Transport Commissioner, who is the *ex officio* under Section 9 of the Kerala Road Safety Authority Act, 2007, is directed to look into the damaging effect of roadside advertisements in the light of 'Policy on Roadside Advertisements' published by the Indian Road Congress, 1992.
- O) Cluster of wires on trees and electrical poles, be regulated by the statutory authorities and the District Collectors are directed to take appropriate action for removal as per the existing rules.
- P) The Commissioner of Police or the Superintendent of Police, as the case may be, shall issue directions to the concerned police personnel, who are entrusted with the job of night patrolling, including the beat marshals, to keep a constant vigil, for preventing the activity of erection/display of illegal hoardings, banners, flexes, temporary arches, posters etc., during night time.
- Q) The Commissioner of Police/District Police Chief, shall provide necessary assistance to the Highways Authority under Sections 44 and 15(2) of the Act, 1999 for removal of the unauthorised structures, hoardings, advertisement boards and displays, endangering road safety.
- R) Whenever an action is proposed to be taken by the authorities, as stated above, the concerned Assistant Commissioner / Deputy Superintendent of Police shall extend adequate police protection and police help to the local authorities, in the process.



- S) Report regarding removal of the above-mentioned unauthorised structures, outdoor hoardings / billboards, be submitted by the competent authorities under the respective enactments, to the District Collectors, every month.

57. The directions issued above, shall be scrupulously implemented, within a period of three months from the date of receipt of a copy of this judgment. The office of the learned Advocate General and the respective standing counsel shall forward a copy of this judgment to the State Government, for appropriate action, in accordance with the directions issued.

Registry is directed to list the writ petitions after three months, for filing consolidated compliance reports, by the respective Secretaries to the Government."

In view of the aforesaid judgment, this writ petition is also disposed of. The directions in the aforesaid judgment shall govern this case as well, in all respects.

**S. MANIKUMAR,
CHIEF JUSTICE.**

**SHAJI P. CHALY,
JUDGE.**

Rv



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APPENDIX

PETITIONER'S EXHIBITS:

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| EXHIBIT P1 | TRUE COPY OF THE KERALA STATE POLICY ON OUTDOOR
ADVERTISING ISSUED UNDER THE ROAD SAFETY ACT,
2007. |
| EXHIBIT P2 | TRUE COPY OF THE GOVERNMENT ORDER BEARING NO.
G.O. (MS)06/2016/TRANS DATED 02.02.2016. |

RESPONDENT'S EXHIBITS: NIL

/TRUE COPY/

PS TO JUDGE.

RV